

Equivalent Citations

citation codes .

MR.SANJAY KALATE v. VISTRA ITCL INDIA LIMITED

National Company Law Tribunal (May 17, 2023)

CASE NO.

IA(I.B.C) - 2002/2023

NATIONAL COMPANY LAW TRIBUNAL

MUMBAI BENCH, COURT-V

9. IA/2002/2023 In C.P. (IB)/283(MB)2023

CORAM:

SMT. ANURADHA BHATIA SHRI KULDIP KUMAR KAREER

HON'BLE MEMBER (T) HON'BLE MEMBER (J)

**ORDER SHEET OF THE HEARING OF MUMBAI BENCH OF THE
NATIONAL COMPANY LAW TRIBUNAL ON 17.05.2023**

NAME OF THE PARTIES: VISTRA ITCL (INDIA) LIMITED

V/s

ENVIRANT DEVELOPERS PRIVATE

LIMITED

Section : 7 of Insolvency & Bankruptcy Code, 2016

ORDER

The matter is taken up through Virtual Hearing (VC).

IA No. 2002/2023 - Adv. Sarosh E. Bharucha appeared for the applicant. Adv. Ryan D'Souza a/w. Adv. Zaid Mansuri i/b. DSK Legal appeared for the Financial Creditor. The present application is filed by Mr. Sanjay Pandurang Kalate who is Director and Shareholder of the Corporate Debtor under Rule 11 of NCLT Rules, 2016.

Heard IA No. 2002/2023. Applicant claims that certain *fraud* has been committed by one Mr. Kaneria. It has been stated that C.P. (IB)/283/2023 has already been Reserved for Order by this Bench. In the C.P.(IB)/283/2023 which has been filed filed under Section 7 of Insolvency & Bankruptcy Code, 2016, one Mr. Kaneria is stated to file reply without any authorization of Board of Directors. It has further been pointed out that there is some dispute inter se between the Directors of the Company and some settlement agreement was executed whereby, Mr. Kaneria agreed to step down from his Directorship. It is further been pointed out that the reply filed by the

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Mr. Kaneria in the C.P.(IB)/283/2023 should not be taken into consideration as the same has been filed without any authorization of the Board of Directors of the Company.

During the course of the arguments when the Counsel for the applicant asked as to whether the instant application has been filed with the approval and authorization of the Board of the Directors of the company. It was stated by the Counsel for the applicant that there is no such authorization on behalf of the Board of the Directors of the company to file the instant application. That being so, on the basis on this the instant application which appears to be frivolous application and seems to have been filed with the view to delay the proceedings of C.P.(IB)/283/2023 the proceedings of C.P.(IB)/283/2023 cannot be derailed. Therefore, we find the **IA No. 2002/2023** has been filed without any merit and the same is hereby **dismissed** being vexatious in nature.

Sd/- Sd/-

ANURADHA BHATIA KULDIP KUMAR KAREER

Member (Technical) Member (Judicial)